

Murtuja v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 23 January 2018 · Writ-C No. 2990 of 2018 · **EE directed to decide pending Clause 6.5 bill-correction application**

HEADNOTE

Writ disposed by directing the Executive Engineer, Electricity Distribution Division, Padrauna, to decide the petitioner's pending application for correction of the electricity bill under Clause 6.5 of the Electricity Supply Code, 2005 within four weeks of production of a certified copy. The Court did not examine the bill on merits.

FACTUAL SUMMARY

The petitioner, Murtuja, filed Writ-C No. 2990 of 2018 against U.P. Power Corporation Limited and two others before the Allahabad High Court. His application for correction of an electricity bill was pending consideration before the Executive Engineer, Electricity Distribution Division, Padrauna, impleaded as respondent no.3. He sought a direction for decision of that application. Counsel for the petitioner and for the Corporation were heard. The Court did not examine the correctness of the bill on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending bill-correction application before Executive Engineer

HOLDING

Where a consumer's application for correction of an electricity bill is pending before the Executive Engineer, the writ may be disposed of by directing that officer to decide the application under Clause 6.5 of the Electricity Supply Code, 2005 within a fixed time, without adjudicating the bill on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

Left for decision by the Executive Engineer on the pending Clause 6.5 application. ¶ 1